

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Enoch Sowah	Team: Squad #01	CCRB Case #: 202003416	☒ Force ☒ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☒ Injury
Incident Date(s) Saturday, 05/16/2020 9:00 PM	Location of Incident: In front of 1633 2nd Ave	18 Mo. SOL 5/4/2022	Precinct: 19
Date/Time CV Reported Wed, 05/20/2020 12:38 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Wed, 05/20/2020 12:38 PM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Omar Ibrahim	22199	963075	019 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Osmairy Castillo	08080	963440	019 PCT
2. POM Christian Campos	10099	964419	019 PCT
3. POM Tyler Barbour	08933	963392	019 PCT
4. POF Jacqueline Provisiero	11594	967655	019 PCT
5. POM Daniel Grzan	01272	965735	019 PCT
6. POM Shaddad Salem	19703	966828	019 PCT
7. POM Harley Greco	10322	965154	019 PCT
8. POM Panagiotis Koutsoulidakis	11953	965774	019 PCT
9. SGT Richard Hornberger	05084	947085	019 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Omar Ibrahim	Discourtesy: Police Officer Omar Ibrahim acted discourteously toward § 87(2)(b)	A . Unfounded
B . POM Omar Ibrahim	Force: Police Officer Omar Ibrahim used a chokehold against § 87(2)(b)	B . Substantiated
C . POM Omar Ibrahim	Force: Police Officer Omar Ibrahim used physical force against § 87(2)(b)	C . Substantiated

Case Summary

On May 16, 2020, § 87(2)(b) and an unidentified individual filed this complaint on behalf of § 87(2)(b) after seeing a video of the incident on Twitter. On June 11, 2020, § 87(2)(b) and one of his attorneys, § 87(2)(b) both filed this complaint with the CCRB.

On May 16, 2020, at approximately 9 p.m., in front of 1633 2nd Avenue in Manhattan, Police Officer Omar Ibrahim from the 19th Precinct acted discourteously towards § 87(2)(b) (**Allegation A: Discourtesy, unfounded**), placed § 87(2)(b) in a chokehold and used force against § 87(2)(b) (**Allegations B and C: Force, substantiated**).

§ 87(2)(b) received a summons as a result of this incident (Board Review 01). No other summonses or arrests resulted from this incident.

Nine cellphone videos, and eight police body-worn camera footages were received for this incident (Board Review 02 – Board Review 15). One of the cellphone videos was posted on Twitter, and subsequently circulated on multiple social and news media sites, hence the case was added to the sensitive case list.

Findings and Recommendations

Allegation (A) Discourtesy: Police Officer Omar Ibrahim acted discourteously toward § 87(2)(b).

Allegation (B) Force: Police Officer Omar Ibrahim used a chokehold against § 87(2)(b).

Allegation (C) Force: Police Officer Omar Ibrahim used physical force against § 87(2)(b).

It is not disputed that PO Ibrahim used physical force against § 87(2)(b) but it is disputed whether PO Ibrahim acted discourteously towards § 87(2)(b) or placed him a chokehold.

§ 87(2)(b) (Board Review 16) said that his girlfriend informed him that a number of bars and restaurants in the City, which were all closed as a result of the Covid-19 pandemic, had begun to open. § 87(2)(b) who had been indoors for approximately two months, and had recently received his stimulus check, thus decided to head to the Upper East Side, and support some of the local business. § 87(2)(b) arrived at the Upper East Side alone, at some time between 5 p.m., and 7 p.m., but did not recall his exact location, except that he was on 2nd Avenue and in the East 80s or 70s. § 87(2)(b) saw a lot of civilians in the streets and sidewalks, many of whom were consuming alcoholic beverages. § 87(2)(b) did not know any of the civilians at the location, and said his goal for that day was to support as many open businesses as he could. He thus walked a total of approximately five to six blocks on 2nd Avenue, patronizing the services of almost all the open businesses within that radius, and recorded his experiences on his cellphone. § 87(2)(b) did not recall what types of businesses he supported, but acknowledged visiting at least four bars within that location, and purchasing cups of beers. § 87(2)(b) also consumed the alcoholic beverages on the sidewalk. § 87(2)(b) acknowledged consuming a total of three to four beers, but denied being intoxicated nor did he otherwise act disorderly. He also acknowledged that there were police officers at almost all the businesses he visited, and that the officers, none of whom § 87(2)(b) interacted with, often reminded the civilians on the sidewalk to socially distance and not crowd the sidewalk. § 87(2)(b) did not recall being told not to consume his beer in the street or sidewalk. At approximately 9 p.m., § 87(2)(b) visited the Mexicoma restaurant, located at 1633 2nd Avenue, and purchased a cup of beer, which he began to consume on the sidewalk. There were other civilians on the sidewalk, many of whom were also consuming alcoholic beverages. At some point, Police Officers Omar Ibrahim and Osmairy Castillo both from the 19th Precinct, identified via investigation, approached § 87(2)(b) on the sidewalk. PO Ibrahim slapped the cup of beer out of § 87(2)(b) hands, grabbed § 87(2)(b) hands, and began to push § 87(2)(b). § 87(2)(b) had not encountered the officers at any point prior, did not know why PO Ibrahim slapped the cup of beer out of his

hands, nor did he know why PO Ibrahim pushed him. Neither of the officers issued § 87(2)(b) any commands upon approach. PO Ibrahim then wrapped his arm around § 87(2)(b) neck, while PO Castillo brought § 87(2)(b) hands behind his back. § 87(2)(b) could not describe how PO Ibrahim wrapped his arm around his neck, nor did he recall if PO Ibrahim applied pressure on his neck. PO Ibrahim moved his hands towards § 87(2)(b) lower body, lifted § 87(2)(b) up from the ground, and slammed § 87(2)(b) onto the concrete sidewalk. § 87(2)(b) hit his head on the sidewalk, immediately lost consciousness, and thus did not recall anything else that transpired, except that he regained consciousness inside an ambulance. § 87(2)(b) did not know how long he was unconsciousness, did not know why PO Ibrahim slammed him on the concrete sidewalk, and denied resisting or struggling with the officers at any point prior to being brought to the ground. § 87(2)(b) was transported to § 87(2)(b) Hospital, but he did not recall the type of treatment he received, nor did he recall when he was discharged, but said he suffered head, neck, and back injuries as a result of being slammed on the sidewalk, and since the incident has been receiving neurological and psychological treatment at § 87(2)(b) in Manhattan. § 87(2)(b) declined to provide the investigation with copies of the cellphone videos he took that day.

The investigation, however, obtained six cellphone videos which § 87(2)(b) posted on his YouTube channel, and the videos show him recording from multiple locations on 2nd Avenue between East 84th and 86th Streets in Manhattan, but they do not depict this incident or any of the allegations in this case. One of the videos (Board Review 04), shows § 87(2)(b) standing in front of Mexicoma restaurant at nighttime with a medium sized crowd, and pointing his camera towards two marked police vehicles that are parked in front of the restaurant, and saying, "If I don't go home today, it's because those guys grabbed me." There appears to be two uniformed officers standing next to the marked vehicles, but they are not close enough to be identified.

§ 87(2)(b) medical records from § 87(2)(b) Hospital § 87(2)(a) – PHL 18(6)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b) He complained of having headaches and shoulder pain as a result of being slammed to the ground by the police and hitting his head. Some redness was observed on the right side of his head. § 87(2)(b) denied experiencing any dizziness. § 87(2)(a) – PHL 18(6)
§ 87(2)(b)
§ 87(2)(b) stated that he was recording the officers because they do not need to work, yet they keep working. The officers were upset about being recorded and did not like that § 87(2)(b) argued with them, so they brought him to the hospital. § 87(2)(a) – PHL 18(6)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)

§ 87(2)(b) recorded and posted a video of this incident on his Twitter page, and the video was subsequently circulated on other social and news media sites. The video (Board Review 05) begins on the sidewalk of Mexicoma restaurant, and shows PO Ibrahim and PO Castillo, identified via investigation, struggling with § 87(2)(b) and trying to grab § 87(2)(b) arms. One of § 87(2)(b) shoes is in the middle of the sidewalk, and a few feet away from § 87(2)(b) and the two officers. There is a small to medium size crowd of civilians on the sidewalk, but they are all standing further away from the officers and § 87(2)(b) At 00:04, the two officers appear to grab § 87(2)(b) upper body, and PO Ibrahim appears to pull § 87(2)(b) away from the front of the restaurant. At 00:06, PO Ibrahim, standing on § 87(2)(b) left side, appears to place his left arm on the back of § 87(2)(b) neck, and his right arm across § 87(2)(b) chest. PO Castillo, who is standing behind § 87(2)(b) is

holding both of § 87(2)(b) hands, which are behind § 87(2)(b) back. At 00:07, PO Ibrahim attempts to pull § 87(2)(b) towards the ground, but is unsuccessful as the officers continue to struggle with § 87(2)(b). An unidentified civilian says into the camera, “This guy has been asking for it.” At 00:07, PO Ibrahim’s right hand appears to move towards the front of § 87(2)(b) neck. At 00:09, PO Ibrahim slightly bends his upper body, grabs § 87(2)(b) left leg and thigh, and has his right hand around § 87(2)(b) midsection. PO Castillo is still holding both of § 87(2)(b) hands behind his back. At 00:10, PO Ibrahim lifts § 87(2)(b) up from the ground, slightly rotates § 87(2)(b) so that he is parallel to the ground and appears to throw § 87(2)(b) towards the concrete sidewalk. PO Ibrahim appears to release his grip from § 87(2)(b) while § 87(2)(b) heads towards the ground, but PO Castillo maintains control of § 87(2)(b) arms throughout. § 87(2)(b) hits his head, neck and shoulder on the sidewalk, and a loud cracking sound is heard, thus prompting several civilians on the sidewalk to audibly react, and comment about § 87(2)(b) hitting his head and being unconscious. PO Ibrahim’s BWC also appears to fall to the ground. At 00:13, § 87(2)(b) is lying on his stomach on the sidewalk, and does not appear to be moving. PO Ibrahim kneels next to § 87(2)(b) and handcuffs him. The video ends at 00:33.

An enhanced and slowed down version of the cellphone video (Board Review 06) at 00:00 shows PO Ibrahim’s left bicep on the back of § 87(2)(b) neck, with his left arm extending towards the front of § 87(2)(b) neck. At 00:01, PO Ibrahim appears to remove his left arm from § 87(2)(b) neck, but then moves his right arm towards the front of § 87(2)(b) neck. At 00:02, PO Ibrahim moves his right hand towards § 87(2)(b) midsection, and his left hand between § 87(2)(b) legs, while PO Castillo is holding both of § 87(2)(b) hands behind his back. At 00:04, PO Ibrahim appears to pull his left hand away from underneath § 87(2)(b) torso, and then continues to push § 87(2)(b) towards the ground with his right hand.

§ 87(2)(b) (Board Review 19) was unavailable to the investigation despite extensive contact attempts made to him (Board Review 20).

PO Ibrahim’s BWC (Board Review 08) shows § 87(2)(b) standing next to PO Ibrahim at the curb of the street, and pointing his cell phone, which he is holding in his left hand towards PO Ibrahim. § 87(2)(b) is also holding what appears to be five stacked plastic cups and a cigarette in his right hand. It is unclear from the footage if there is anything in the cups. At 00:05, § 87(2)(b) mouth is moving as if speaking to PO Ibrahim, but there is no audio. PO Castillo is leaning against a marked police vehicle approximately three feet away. At 00:06, PO Ibrahim takes the cups from § 87(2)(b) right hand, and appears to throw the cups on the sidewalk. § 87(2)(b) continues to speak, but there is no audio. At 00:13, PO Castillo approaches § 87(2)(b) and PO Ibrahim. At 00:21, § 87(2)(b) moves away from the officers, and begins to run backwards towards the front of the restaurant. PO Ibrahim appears to follow and grab § 87(2)(b) but § 87(2)(b) clothing appears to make contact with the camera, and thus causes the footage not to depict any clear images. At 00:30, the audio engages, and § 87(2)(b) appears to say to PO Ibrahim, “What did I do?” The video then ends at 00:34.

PO Castillo’s BWC (Board Review 09) shows PO Ibrahim and § 87(2)(b) speaking at the curb of the street in front of the restaurant. § 87(2)(b) is not holding any plastic cups at this point. At 00:06, PO Ibrahim leans toward PO Castillo and appears to say something to him, though there is no audio and PO Ibrahim is wearing a mask. As he leans toward PO Castillo, PO Ibrahim moves his left hand towards his left waistband, and appears to remove a pair of handcuffs. At 00:07, § 87(2)(b) moves away from PO Ibrahim, and appears to run backwards towards the front of the restaurant. PO Ibrahim and PO Castillo follow § 87(2)(b) into the sidewalk. At 00:08, PO Ibrahim appears to attempt to grab § 87(2)(b) as he moves away, but the quality of the footage is hindered due to PO Castillo’s rapid movements and subsequent close physical proximity to PO Ibrahim and § 87(2)(b). At 00:09, PO Ibrahim and § 87(2)(b) are standing approximately five feet away from the front entrance of the restaurant, and PO Ibrahim

appears to be holding § 87(2)(b) somewhere on his upper body. PO Ibrahim and § 87(2)(b) then appear to struggle, but it is unclear from the footage exactly what is happening. At 00:12, PO Castillo approaches § 87(2)(b) and PO Ibrahim, and appears to attempt to assist PO Ibrahim grab § 87(2)(b) hands. At 00:15, PO Ibrahim's right arm is on the back and right side of § 87(2)(b) neck, while at 00:18 his left bicep is in front of § 87(2)(b) throat. PO Castillo is holding both of § 87(2)(b) hands behind his back, but the two officers continue to struggle with § 87(2)(b). At 00:19, PO Ibrahim drops his left arm from § 87(2)(b) neck and moves his hands towards § 87(2)(b) lower body, lifts § 87(2)(b) up from the ground, rotates him parallel to the ground and drops § 87(2)(b). § 87(2)(b) hits his head, and lies motionless on the ground. PO Ibrahim's BWC also falls on the sidewalk. At 00:22, PO Ibrahim handcuffs § 87(2)(b). At 01:08, PO Castillo sits § 87(2)(b) up on the sidewalk. § 87(2)(b) appears to be conscious. At 01:30, PO Ibrahim requests an ambulance. At 02:30, additional officers arrive on scene. At 04:42, PO Castillo says that it has been "all day with this guy here." At 05:02, § 87(2)(b) says to PO Ibrahim, "You know by law, you don't have to protect us, so why did you throw me on the ground?" At 05:02, PO Ibrahim says that § 87(2)(b) cursed at him, and that § 87(2)(b) has an open container. § 87(2)(b) stated that he did nothing but back away from PO Ibrahim and that PO Ibrahim threw him to the ground. At 05:18, PO Ibrahim tells § 87(2)(b) that he had asked § 87(2)(b) for his ID, and that § 87(2)(b) refused to provide it. § 87(2)(b) tells PO Ibrahim that he is not required to give the officers his ID. At 05:40, PO Ibrahim tells § 87(2)(b) that he has been cursing at the officers since 4 or 5 pm and is intoxicated. At 10:06, PO Castillo, and one of the arriving officers pick § 87(2)(b) up from the ground, walk him towards an ambulance, which transports § 87(2)(b) to § 87(2)(b) Hospital.

PO Ibrahim (Board Review 21) and PO Castillo (Board Review 22) provided consistent testimonies. They said they spent most of their tour in the vicinities of 2nd Avenue between East 80th and East 89th Streets, and that they patrolled those locations to ensure that everyone outside patronizing the services of the restaurants and bars were doing so safely and lawfully. PO Castillo and PO Ibrahim did not recall receiving any specific instructions, except that they were to ensure that people were not crowding the sidewalks, drinking in public, and acting disorderly. PO Castillo and PO Ibrahim during their patrols often stopped at the various open bars, and reminded the civilians on the sidewalks not to crowd the sidewalks or drink in public. PO Ibrahim and PO Castillo interacted with § 87(2)(b) twice that day before the encounter in front of the Mexicoma restaurant. They did not recall much about the first two interactions with § 87(2)(b) except that it was during the daytime at two different bars on 2nd Avenue, and that § 87(2)(b) during each of those encounters was consuming beer publicly on the sidewalk, rambling incoherent statements, and yelling profanities at officers and civilians. PO Ibrahim and PO Castillo, during those two encounters, ordered § 87(2)(b) to desist from drinking in public, and to leave the location, but § 87(2)(b) refused each time. PO Ibrahim thus informed § 87(2)(b) that he would receive a summons for an open container or disorderly conduct if the officers encountered him drinking in public again. PO Castillo and PO Ibrahim suspected that § 87(2)(b) was under the influence of alcohol, given his demeanor, but both elected not to issue summonses that day because it was the first time since the pandemic that people were outside and supporting their local businesses. PO Ibrahim also said that most of the civilians they encountered, with the exception of § 87(2)(b) were compliant with the officers' orders not to drink publicly, and thus did not require summonses.

At approximately 9 p.m., PO Castillo and PO Ibrahim, whilst on patrol, observed a large crowd of people gathered in front of the Mexicoma restaurant, many of whom were drinking on the sidewalk. PO Castillo and PO Ibrahim pulled over, informed all the civilians on that sidewalk that public drinking was illegal, that there was also a 10 p.m., statewide curfew for restaurants and bars, and thus ordered everyone who was not purchasing anything to disperse. § 87(2)(b) approached PO Castillo and PO Ibrahim while they headed to their vehicle, and began to yell and

§ 87(2)(g)

The video shows PO Ibrahim lifting § 87(2)(b) up from the ground, rotating him parallel to the ground and forcefully throwing § 87(2)(b) to the ground. § 87(2)(g)

Additionally, the video shows that PO Castillo had obtained both of § 87(2)(b) hands, which were behind § 87(2)(b) back. § 87(2)(g)

The arm positioning also contributed to § 87(2)(b) being unable to break his fall with his hands and thus landing on his head. § 87(2)(g)

it is therefore recommended that **Allegations B and C** be closed as **substantiated**.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (Board Review 25).
- PO Ibrahim has been a member of service for five years, and has been a named subject in four CCRB complaints, and 11 allegations, four of which were not substantiated, and the remaining of which are pending investigation. § 87(2)(g)

Mediation, Civil, and Criminal Histories

- This case was not eligible for mediation.
- § 87(2)(b) filed a Notice of Claim with the City of New York claiming unlawful exercise of police power and authority, false arrest and imprisonment, assault, and use of excessive force, which resulted in emotional distress, physical injuries, loss of liberty, shock and trauma, loss of hearing, and loss of dignity. § 87(2)(b) is thus seeking \$20,000,000 as compensation. § 87(2)(b), § 87(2)(a)
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad: 1

Investigator:	Enoch Sowah		01/05/2022
	Signature	Print Title & Name	Date

Squad Leader:	Mgr. Joy Almeyda		01.17.22
	Signature	Print Title & Name	Date

Reviewer:			
	Signature	Print Title & Name	Date

